

25VECV04924 25VECV04924

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Case Number: 25VECV04924 Hearing Date: September 23, 2026 Dept: NWI

25VECV04924 ISALIA GUZMAN NIETO V.

FORD MOTOR COMPANY

September 23, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Compel Further Responses to Requests
for Production (Set One)

I.

Background

On September 2, 2025, Plaintiff Isalia Guzman Nieto ("Plaintiff" or "Nieto") filed a complaint against Ford Motor Company ("Defendant" or "Ford") and Does 1 through 10 asserting the following causes of action: (1) violation of the Song Beverly Act – breach of express warranty, (2) violation of Song-Beverly Act – breach of implied warranty, and (3) violation of the Song-Beverly Act section 1793.2. The Complaint arises out of Plaintiff's purchase of a 2021 Ford Expedition ("Subject Vehicle") and defects and nonconformities to warranty that were discovered after the purchase.

On October 15, 2025, Defendant filed its Answer to the Complaint.

On August 24, 2026, Plaintiff filed the instant Motion to Compel Further Responses to Requests for Production of Documents (Set One) and Request for Monetary Sanctions ("Motion").

On August 31, 2026, Plaintiff filed an amended Motion. Defendant filed an Opposition on September 10, 2026, and Plaintiff filed a Reply on September 15, 2026.

On September 15, 2026, the Court approved the parties' Stipulation and Protective Order.

II.

Discussion

A. Meet and Confer

The Civil Discovery Act requires a moving party to attest to a good faith meet and confer effort as described in Code of Civil Procedure section 2016.040 before a motion to compel further discovery responses may be granted. (Code Civ. Proc., § 2031.310, subd. (b)(2).) Specifically, "[a] meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).) "[A]ttempting informal resolution means more than the mere attempt by the discovery proponent 'to persuade the objector of the error of his ways' and 'a reasonable and good faith attempt at informal resolution entails something more than bickering with [opposing]counsel.... Rather, the law requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.'" (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

On August 4, 2026, Plaintiff's counsel sent a detailed meet and confer letter to Defendant's counsel outlining the deficiencies in Defendant's responses to the RPDs. (Zakharian Decl., ¶14, Ex. 4.) Plaintiff offered to stipulate to a protective order to resolve Defendant's confidentiality and trade secret objections. (Ibid.) Plaintiff also requested a response, document production, and availability for a teleconference by August 11, 2026. (Ibid.) Defendant provided a written response on August 13, 2026, along with a copy of the Los Angeles Superior Court Model Protective Order. (Id. at ¶15, Ex. 5.) Defendant agreed to produce certain manuals subject to the execution and entry of the protective order, but largely stood by its responses and objections. (Ibid.)

Ford claims it attempted to

meet and confer in good faith: after receiving Plaintiff's August 4 letter, Ford responded on August 13, explained the basis for its objections, provided the protective order, and proposed narrowing RPD No. 30 by identifying specific symptoms from Plaintiff's repair records to tailor the search. (Abraham Decl., ¶¶5-11.) Ford asserts that Plaintiff never replied to this proposal and instead filed the Motion, thus, Plaintiff failed to adequately meet and confer. (Ibid.)

In her Reply, Plaintiff disputes Ford's assertion of inadequate meet-and-confer efforts. The Reply details that Plaintiff sent a thorough letter on August 4; Ford responded on August 13; Plaintiff executed the requested protective order on August 19; and on September 14, the parties held a telephonic meet-and-confer during which Plaintiff identified each missing category and requested either production or Bates ranges, as well as a privilege log. (Zakharian Reply Decl., ¶¶8-12.) Plaintiff then memorialized the discussion by email the same day. (Ibid.) Plaintiff argues these efforts satisfy section 2016.040, which requires a reasonable attempt—not endless correspondence—to resolve issues.

Although the parties initially met and conferred in writing, according to Plaintiff, the parties also met and conferred by telephone after the Motion was filed. The Court finds that the meet and confer requirement has been satisfied.

B. Motion to Compel Further Responses

"The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item" with a (1) statement of compliance, (2) a representation of inability to comply, or (3) objection. (Code of Civ. Proc., §2031.210, subd. (a).) "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Id. at §2031.220.) Furthermore, "representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply

with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.”

(Id. at §2031.230.) If an objection is made, the response must identify with particularity any document falling within any category in the demand to which an objection is being made and set forth clearly the extent of, and the specific ground for, the objection. (Id. at §2031.240.)

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that...(1) [a] statement of compliance with the demand is incomplete[;] (2) [a] representation of inability to comply is inadequate, incomplete, or evasive[;] (3) [a]n objection in the response is without merit or too general.” (Code of Civ. Proc., §2031.310, subd. (a).)

Notice of the motion must be given within 45 days of service of the verified or supplemental response or before any specific later date to which the propounding and responding party have agreed in writing, otherwise, the propounding party waives any right to compel a further response. (Code Civ. Proc., §2031.310, subd. (c).)

All motions involving further discovery must contain a separate statement with the text of each request, the response, and a statement of factual and legal reasons for compelling further responses. (Cal. Rules of Court, rule 3.1345, subd. (a)(2); Code of Civ. Proc., §2031.310, subd. (b)(3).)

Plaintiff moves to compel Defendant Ford's further responses to her Request for Production of Documents (“RPDs”), Set One, Nos. 1-31. On June 9, 2026, Plaintiff served Defendant with the first set of RPDs seeking documents relating to: (1) Plaintiff's own vehicle; (2) Defendant's warranty and replacement/repurchase policies, procedures, and practices; and (3) Defendant's knowledge of the same or similar defects in other vehicles of the same year, make, and model as the Subject Vehicle. Ford served written responses on July 10, 2026 and verified them on July 29, 2026.

Plaintiff contends Ford's responses rely on blanket, boilerplate objections that are improper and in bad faith. Plaintiff further argues Ford waived objections by serving untimely responses and, for electronically stored information ("ESI"), failed to identify the types or categories of ESI sources that are not reasonably accessible.

Plaintiff maintains the RPDs are directly related to the Song-Beverly Consumer Warranty Act ("SBA") claims. Given the manufacturer's affirmative duty to repurchase or replace when repairs are not accomplished within a reasonable number of attempts, documents pertaining to Plaintiff's specific repair issues, as well as those pertaining to similar, prior repair issues of other similarly situated vehicle owners, are relevant. Moreover, a showing that a manufacturer willfully failed to abide by its obligations under the SBA supports a civil penalty of up to two times actual damages; thus, documents tending to prove a defendant had prior knowledge of similar, prior vehicle defects are directly relevant to a finding of willful failure to abide by the SBA.

Plaintiff argues that she is entitled to all documents in Defendant's possession that relate to defects in the vehicle, Defendant's knowledge of similar defects, and Defendant's warranty and customer-complaint policies. Plaintiff contends that Defendant has responded with baseless objections instead of producing materials that are crucial to assessing defects, expert analysis, and Defendant's ability or inability to repair the vehicle. These documents are also relevant to determining whether Defendant acted in good faith under the SBA, including its policies for repurchase or replacement and its handling of consumer complaints. Finally, Plaintiffs assert that evidence of Defendant's knowledge of similar defects and its failure to provide a refund or replacement supports a finding of willfulness and potential civil penalties, which may explain Defendant's evasive discovery responses. Relying on California appellate decisions, Plaintiff contends courts routinely compel discovery of complaints, service histories, internal notices, and testing related to the same defect across the affected product line, and admit expert testimony based on similar problems in vehicles sharing the same component. Given that the standards of relevance are broader than those of admissibility at trial, Defendant must produce all responsive documents, notwithstanding the fact that they may involve vehicles other than that of Plaintiff.

In its Opposition, Ford argues that the Motion should be denied because Plaintiff has not shown “good cause” under Code of Civil Procedure section 2031.310, the RPDs are facially overbroad and insufficiently particularized (often demanding “all” documents), and Ford has already served code-compliant responses and produced hundreds of pages of vehicle-specific materials.

Specifically, as to RPD Nos. 1-14 and 31, Ford argues that it has agreed to produce a list of responsive documents, identified in the Opposition, including the Subject Vehicle’s Factory Invoice, Owner’s Manual, Scheduled Maintenance Guide and Warranty Guide, Vehicle Information Report, and other documents. Plaintiff does not explain why these responses and documents are incomplete or what additional documents Ford should have produced. For RPD Nos. 15-18 and 20-29 (seeking documents regarding policies and procedures for issuance of vehicle refunds or replacements, handling customer complaints, evaluating vehicle repurchases and replacements, and warranty claims), Ford agreed to produce (1) Ford’s Warranty Policy and Procedure Manual; (2) policies and procedures for Ford’s Customer Relationship Center (“CRC”); and (3) and RAV Policy & Procedure Manual.

Ford argues that it properly objected to requests that are overly broad or seek irrelevant or privileged information. For example, Ford defends its privilege and work-product objections to Nos. 1-3, 6, 8-9, and 12-30, arguing the “all/any” formulations sweep in attorney-client communications and attorneys’ mental impressions. Ford emphasizes it met and conferred on August 13, 2026, proposing a targeted compromise on No. 30 (California complaints for the same year/make/model tied to the specific repair symptoms from Plaintiff’s records), but Plaintiff did not respond and proceeded with filing the instant Motion. Challenging Plaintiff’s bid for “other-vehicle” discovery, Ford contends complaints from other owners are highly individualized and substantially dissimilar, and reiterates that its proposed narrowing for No. 30 strikes a reasonable balance. Finally, after the parties stipulated to the LASC Model Protective Order on August 19, 2026, Ford produced confidential materials and maintains nothing further remains to be produced.

In Reply, Plaintiff argues that Ford never produced documents responsive to the June 9, 2026 Requests for Production and instead improperly relied on its December 2025 initial disclosures (per Code of Civil Procedure section 871.26)—materials created six months before the RPDs were

served. Plaintiff states that Ford's

written RPD responses included neither a production transmittal nor Bates-range

identification, rendering Ford's claim of having produced "hundreds of pages" unascertainable. Furthermore, Plaintiff still has not received

the applicable TSB/SSM/GSB list, FSA history and underlying materials, GSAR information, underlying recall materials, Warranty Policy and Procedure Manual, applicable owner/warranty/maintenance manuals, CRC policies and procedures, or same-or-similar complaints for other 2021 Ford Expeditions, which correspond to RPD Nos. 1-14, 15-29, 30, and 31. Ford

simultaneously asserts that responsive documents were already produced, will be produced, publicly available, and no documents remain, which cannot all be true. During the parties' September 14,

2026, telephonic conference, Plaintiff's counsel listed each outstanding category and asked Ford either to produce it or identify the corresponding Bates range and to produce a privilege log, if necessary.

The Reply further asserts

Ford's objections lack evidentiary support because Ford submitted no declaration describing custodians, databases, search efforts, or burden. Plaintiff contends Ford's redirection to public websites is improper because a responding party must produce documents within its possession or control and cannot shift discovery burdens onto the requesting party. Finally, Plaintiff argues Ford's privilege objections are unsupported because Ford produced no privilege log and no factual basis for withholding documents, as required under § 2031.240, subdivision (c).

i.

Code

of Civil Procedure section 871.26 Disclosures

Plaintiff's RPDs were propounded on June 9, 2026; Ford's reliance on a December 15, 2025 initial disclosure under Code of Civil Procedure section 871.26 as a substitute for later Civil Discovery Act obligations is misplaced. As Plaintiff points out, section 871.26 provides early disclosures "without awaiting a discovery request" but preserves "standard discovery procedures" after an unsuccessful mediation. On this record, Ford must provide Code-compliant responses correlated to each RPD.

ii.

Vehicle-Specific

Categories (Nos. 1-14, 31)

Requests for Production Nos. 1-14

and 31 seek documents regarding Plaintiff, the Subject Vehicle, and Field Service Actions issued in response to complaints experienced by Plaintiff.

Ford represents it has produced or will produce an enumerated set of vehicle-specific records responsive to Nos. 1-14 and 31, including OASIS, GSAR, UDB, TSB/SSM/GSB lists, FSA history with exemplar letters and dealer bulletins, manuals, and related items; Ford also states it has not located photographs for No. 12. Plaintiff, however, asserts she has not received the applicable TSB/SSM/GSB list, FSA history and underlying materials, GSAR information, recall materials, warranty/policy manuals, CRC policies, or same-or-similar complaints, and that Ford has not tied any production to specific RPD numbers or Bates ranges.

Given these competing representations and Ford's incomplete compliance statements, the Court orders Ford to serve verified further responses that: (1) state, demand-by-demand, whether Ford will comply in whole or part; (2) for each statement of compliance, identify by Bates range the documents produced and map them to the specific RPD(s); and (3) for any non-existent documents or inability to comply, provide a Code-compliant statement after a diligent search and reasonable inquiry identifying any known custodians.

iii.

Policy

and Warranty Materials (Nos. 15-29)

Requests for Production Nos. 15–18 and 20–29 seek

documents regarding Ford's policies and procedures for issuance of vehicle refunds or replacements, handling customer complaints, evaluating vehicle repurchases and replacements, and warranty claims. Ford offered to produce the Warranty Policy and Procedure Manual, CRC policies and procedures, and RAV Policy & Procedure Manual, and referred to the Owner's Manual and Warranty Guide for some requests, while objecting to temporal scopes it deems overbroad. Plaintiff executed the stipulated protective order on August 19, 2026, after which Ford states it produced confidential documents. Plaintiff maintains outstanding categories remain unproduced or unidentified.

“[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Gonzalez v. Superior Court, (1995) 33 Cal.App.4th 1539, 1546; Code Civ. Proc. §2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement.’” (Gonzalez, 33 Cal.App.4th at 1546. [italics in original].)

The materials sought in Request Nos. 15-29 are facially relevant to SBA issues identified by Plaintiff, and Ford’s overbreadth concerns can be addressed by reasonable temporal limits. Furthermore, Ford’s responses that Ford “will” produce certain documents or that documents “may be produced” are incomplete compliance statements. As to Request No. 19, flow charts governing how Ford escalates customer complaints are directly relevant to Plaintiff’s SBA claims, particularly to whether Ford’s internal processes constituted “hidden obstacles” to obtaining redress under the Act and whether Ford acted in good faith.

Ford must serve further verified responses without objection stating that all responsive documents to which no objection is made will be included in the production and must produce all responsive documents in its possession, custody, or control, with each production identified by Request for Production number. The production of identified policy and warranty materials may be limited to the period between May 2021, the date of purchase, through June 2025, the date of last repair attempt. Any privilege claims must be consistent with section 2031.240.

iv.

Same
or Similar Complaints (No. 30)

Request for Production No. 30 seeks all documents regarding complaints by owners of 2021 Ford Expedition vehicles that are substantially similar to the complaints made by Plaintiff regarding her vehicle.

Ford proposed, in meet-and-confer correspondence, to produce documents sufficient to identify California customer complaints concerning vehicles of the same year, make, and model (2021 Ford Expedition with the specified drivetrain/engine/transmission) involving symptoms from Plaintiff's repair records, within 60 days of agreement on parameters. Plaintiff asserts she limited the request to same year/make/model and substantially similar defects and identified the categories at issue during a September 14, 2026 conference and follow-up email.

The Court finds good cause for discovery limited to the same year, make, and model and substantially similar symptoms/components reflected in Plaintiff's repair records, for a reasonable geographic scope and timeframe. The Court orders the parties to meet and confer within 14 days of this Order to identify the specific warranty repair presentations from Plaintiff's repair records that are at issue in the case and about which Plaintiff seeks additional documents from Ford's internal databases. Upon agreement regarding those parameters, Ford shall supplement its response to Request No. 30 and produce the agreed-upon documents within 30 days of the meet-and-confer.

v.

Privilege
and Public Websites

Ford raises attorney-client and work-product concerns given "all/any" phrasing across multiple RPDs. Plaintiff notes no privilege log has been served despite assertions that material may be withheld. Any privilege or protection must be asserted by specific demand with sufficient information to evaluate the claim, and, if documents are withheld, Ford shall serve a privilege log compliant with section 2031.240, subdivision (c) within 30 days. Plaintiff also objects to Ford directing her to public websites in lieu of producing documents within Ford's possession, custody, or control. Ford shall not rely solely on public links in response to the RPDs where responsive materials are within its possession, custody, or control; it must produce such materials and identify them by request.

C. Request for Discovery Sanctions

Code of Civil Procedure section 2031.310, subdivision (h), provides for the issuance of monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel

further responses to requests for production, unless the court finds the party who would be subject to sanctions acted with substantial justification or that other circumstances make sanctions unjust.

Plaintiff seeks \$3,672.50 in monetary sanctions in connection with this Motion as follows: 5.5 hours for preparing the moving papers, 2 hours to review the opposition and draft a reply, and 1 hour to attend the hearing, at a billing rate of \$425 per hour, plus \$60 in filing fees. (Zakharian Decl., ¶¶26-28.)

Plaintiff maintains Ford relied on pre-RPD disclosures, failed to correlate production to specific demands, directed Plaintiff to public sources, asserted hypothetical privileges without a log, and claimed completion notwithstanding outstanding categories. Ford contends it has complied, produced confidential materials following entry of the protective order, offered reasonable compromises, and that nothing further remains. Given that the Motion is granted, the Court finds that sanctions against Ford are justified and that the hourly rate and amount requested is reasonable.

Accordingly, Plaintiff's request for monetary sanctions in the amount of \$3,672.50 is granted.

D. Conclusion

Accordingly, Plaintiff Isalia Guzman Nieto's Motion to Compel Further Responses to Requests for Production (Set One) is GRANTED.

Within 30 days of this Order, Defendant Ford Motor Company shall serve Code-compliant, verified further responses to Plaintiff's Requests for Production of Documents, Set One, Nos. 1-29 and 31, identified by Request number and Bates ranges where applicable. The production may be limited to the period between May 2021, the date of purchase, through June 2025, the date of last repair attempt.

To the extent Defendant Ford Motor Company is withholding any documents on privilege grounds, Defendant shall serve a privilege log within 30 days of this Order identifying each withheld document, the privilege asserted, and sufficient factual information to permit evaluation of the claim.

As to Request No. 30, the parties shall meet and confer within 14 days of this Order to identify the specific warranty repair

presentations from Plaintiff's repair records that are at issue in the case and about which Plaintiff seeks additional documents from Defendant's internal databases during the May 2021 through June 2025 period. Upon agreement regarding those parameters, Defendant shall supplement its response to Request No. 30 and produce the agreed-upon documents within 30 days of the meet-and-confer.

Defendant Ford Motor Company is also ordered to pay monetary sanctions to Plaintiff in the amount of \$3,672.50 within 30 days of this Order.

Plaintiff to give notice.